

1 ENGROSSED HOUSE
2 BILL NO. 3419

By: Strom, West (Josh), Archer,
Crosswhite Hader,
Dobrinski, Stinson, Fugate,
Kendrix, Kelley, and McCane
of the House

and

Stewart of the Senate

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10 An Act relating to crimes and punishments; amending
11 Section 2, Chapter 336, O.S.L. 2025 (21 O.S. Supp.
12 2025, Section 365), which relates to the corrupt use
13 of nonpublic information; prohibiting current or
14 former officers, employees, or contractors of a
political subdivision from corrupt use of nonpublic
information; clarifying that violation shall be
grounds for termination from government employment;
and providing an effective date.

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17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY Section 2, Chapter 336, O.S.L.
19 2025 (21 O.S. Supp. 2025, Section 365), is amended to read as
20 follows:

21 Section 365. A. Any current or former officer, employee, or
22 contractor of a state agency or political subdivision who obtains or
23 obtained nonpublic information because of his or her government
24 employment, government office, or contract with a state agency or

1 political subdivision, and who corruptly, as defined by Section 94
2 of Title 21 of the Oklahoma Statutes:

3 1. Uses such information for personal gain or benefit;

4 2. Acquires or divests a pecuniary interest in any property,
5 transaction, or enterprise which may be affected by such
6 information;

7 3. Speculates or wagers on the basis of such information;

8 4. Uses such information in a way that would affect any
9 personal pecuniary interest, including an interest held by an
10 immediate family member, or business entity with which the immediate
11 family member is associated;

12 5. Discloses such information to any person, group, entity, or
13 others not entitled to receive such information; or

14 6. Aids another to commit any act set forth in paragraphs 1
15 through 5 of this subsection,

16 shall, upon conviction, be guilty of a felony punishable by a fine
17 not to exceed Ten Thousand Dollars (\$10,000.00), by imprisonment in
18 the custody of the Department of Corrections for a term not to
19 exceed five (5) years, or by both such fine and imprisonment. Any
20 person convicted of violating any provision of this section shall be
21 prohibited from holding any public office in this state and shall be
22 prohibited from entering into any ~~state~~ contract with a state agency
23 or political subdivision.

1 B. Violation of any provision of this section shall be grounds
2 for removal from office or termination from ~~state~~ government
3 employment.

4 C. For purposes of this section, the term "immediate family
5 member" means:

- 6 1. A spouse;
- 7 2. A spouse's parents;
- 8 3. A child by birth or adoption;
- 9 4. A stepchild;
- 10 5. A parent;
- 11 6. A grandparent;
- 12 7. A grandchild;
- 13 8. A sibling;
- 14 9. A spouse's siblings; or
- 15 10. A spouse of any immediate family member listed in this
16 subsection.

17 SECTION 2. This act shall become effective November 1, 2026.

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1 Passed the House of Representatives the 24th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate